Judgment Sheet

IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT

W.P. No. 21935 of 2024.
Akbar Ali, etc. Versus Commissioner, Lahore Division, etc.

JUDGMENT

Date of hearing: - 27.05.2025.

Petitioners by: - Sheikh Sajid Mahmood, Advocate.

Respondents by: - Rana Shamshad Khan, Additional Advocate General, Punjab for respondent No.1.

Mr. Amir Wakeel Butt, Advocate for respondents No.2 and 3.

Shujaat Ali Khan, J: - Unnecessary details apart, the facts, forming factual background of this petition, are that Muhammad Masood Khan and Muhammad Yasoob Khan, brothers *inter-se*, were owners in possession of land measuring 1-Kanal & 7-Marlas, falling in Khewat No.413 (*previous Khewat No.523*), Khasra No.318, situated in Mauza Kot Kamboh, Tehsil City, District Lahore. The said owners sold 10-Marlas of land, out of 27-Marlas, to one Waseem Akhtar s/o Muhammad Amin, through registered Sale Deed bearing No.20732, *Bahi* No.1, *Jild* No.6987, dated 18.10.1979, which was incorporated in the revenue record through Mutation No.3945, attested on 29.04.1982. The petitioners alongwith

their mother, namely, Mst. Hanifan Begum purchased house measuring 5-Marlas, falling in Khewat No.523, Khatoni No.1298, Khasra No.318, from one Waseem Akhtar through Sale Deed bearing No.8540, *Bahi* No.1, *Jild* No.3507, dated 01.10.2001. After purchase of the said house, gas, electricity and water connections were installed in the name of Mst. Hanifan Begum, predecessor-in-interest of the petitioners. Moreover, the petitioners alongwith their predecessor-in-interest have been paying property tax. Since Mst. Hanifan Begum died, mutation of inheritance bearing No.13220 was attested in favour of the petitioners, on 19.09.2017. With a view to sale the house in question, the petitioners approached *Patwari Halqa* for issuance of *Fard* whereupon they came to know that Khasra No.318 was acquired by LDA for its housing scheme, namely, Sabzazar Scheme. The petitioners filed application before the Commissioner, Lahore Division, Lahore (**respondent No.1**) for de-notification of the land, subject matter of their house, who after soliciting reports from various departments, including LDA, dismissed said application through order, dated 22.12.2023; hence, this petition.

2. The submissions, made by learned counsel for the petitioners, can be summed up in the words that when the land, subject matter of the house of the petitioners, was never

acquired by LDA authorities, they had no cheeks to lay claim against it; that while passing impugned order, respondent No.1 did not consider the reports submitted by different authorities verifying the ownership and possession of the petitioners over the house in question; that if the house of the petitioners was situated on the land, subject matter of the Award announced in favour of the LDA, *Patwari Halqa* could conveniently refuse attestation of mutation of inheritance upon the demise of Mst. Hanifan Begum; that *mala-fide* on the part of the respondents is evident from the fact that they are claiming that entire land, subject matter of Khasra No.318, was acquired by LDA, on the basis of Notification issued by the Deputy Commissioner, Lahore, in terms of Section 4 of the Punjab Acquisition of Land (Housing) Act, 1973 **("the Act 1973")** conveying the intention of the government to acquire the land, subject matter of that notification, whereas according to the Award announced in favour of the LDA, only land measuring 17-marlas was acquired from Khasra No.318; that respondent No.1, while dismissing application of the petitioners, treated it as an application for exemption of plot against the house owned by them whereas as a matter of fact they never prayed for grant of exempted plot rather they prayed for de-notification of the land underneath their house from the Award; that *mala-fide* on the

part of the respondents is evinced from the fact that though Mst. Shakeela Zafar was owner to the extent of 7-Marlas of land in Khasra No.318 whereas the respondents have shown that land measuring 17-Marlas was acquired from the said lady; that it is a typical case wherein possession proceedings were allegedly started/completed prior to announcement of formal Award which speaks loud about contumacious conduct of the respondents as Section 16 of the Land Acquisition Act, 1894 **("the act 1894")** envisages that possession can only be taken after announcement of Award, except in cases of real urgency. To fortify his contentions, learned counsel has relied upon the case reported as *Messrs MAG Apartments Private Limited through Chief Executive Officer v. Lahore Development Authority through Director General and another* **(PLD 2025 LHR 347)**.

3. Learned Law Officer, while opposing the submissions made by the learned counsel for the petitioners, states that in view of inconsistent attitude of the petitioners, no relief can be granted in these proceedings. Adds that if the land of the petitioners was not acquired as to how their application seeking de-notification of the land, underneath their house, was maintainable. Further adds that if the petitioners want to

regulate their possession over the subject land, they should approach the civil court.

4. Learned counsel for respondents No.2 and 3, in addition to adopting the arguments advanced by the learned Law Officer, states that since the acquisition proceedings, subject matter of this petition, were conducted under the Act, 1973, the provisions of the Act, 1894 are not relevant. Adds that since the possessions of the acquired land, including land falling in Khasra No.318, was taken over by LDA in the year 1981, the execution of sale deed in favour of the petitioners, in the year 2001, was inconsequential. Further adds that according to the possession proceedings, the land falling in Khasra No.318, was vacant in the year 1981 and if the petitioners occupied the subject land, after taking over of its possession by LDA, they have no justification to continue with said possession. Argues that on the land, underneath the house of the petitioners, plot No.476-B was carved out which was allotted to Shakeela Zafar, in lieu of her acquired land but till date possession could not be given to her due to illegal occupation of the petitioners.

5. While exercising his right of rebuttal, learned counsel for the petitioners states that since the Act, 1973, was repealed by the Punjab Acquisition of Land (Housing) (Repeal) Act, 1985 (**the Act, 1985**) subsequent proceedings were to be governed

under the provisions of Act, 1894, hence, the request of the petitioners was maintainable under the said law.

6. I have heard the learned counsel for the parties and have also gone through the documents appended with this petition in addition to the case-law, cited at the bar.

7. Firstly, taking up the question as to whether the acquisition proceedings, subject matter of this petition, were undertaken under the Act, 1894, or the Act, 1973, I am of the view that intention of the government to acquire land for Sabzazar Housing Scheme was conveyed to the public at large through Notification bearing No.LAC/2458, dated 10.02.1981, issued by the Deputy Commissioner, Lahore, while exercising powers in terms of section 4(2) of the Act, 1973. Further, the Deputy Commissioner, Lahore, authorized the Land Acquisition Collector, LDA, to take over the possession of the land *vide* Notification bearing No.LAC/9699, dated 14.06.1981. The recitals of both the said Notifications stand proof of the fact that not only the acquisition proceedings were initiated under the Act, 1973 but also the same were completed under the said enactment, hence, the reliance of the learned counsel for the petitioner on certain provisions of the Act, 1894 is untenable

notwithstanding the fact that some of the provisions of the Act, 1973 are *peri-materia* to certain provisions of the Act, 1894.

8. Learned counsel for the petitioners repeatedly argued that the respondents, with a view to prove that entire land *falling* in Khasra No.318 was acquired, erroneously relied upon Notification issued by the Deputy Commissioner, Lahore under section 4(2) of the Act, 1973 but as a matter of fact it was only meant to convey the public-at-large about the intention of the government to acquire land falling in the areas, subject matter of the said notification. There is no cavil with the fact that initial step of the government, conveying its intention to acquire particular land for a public purpose, cannot be considered as conclusive proof of acquisition but at the same time when final Award is announced on completion of requisite criteria, the land, subject matter of said Award, does not remain in the name of the previous owner(s) for its further alienation in favour of someone else. Reliance in this regard can be placed on the case of *Government of Pakistan through Secretary Ministry of Defence Rawalpindi and another v. Akhtar Ullah Khan Khattak and others* (**PLD 2024 SC 218**), wherein the proposition, under discussion, has been clinched in the following manner:-

> *"9. There is no denying that as a result of the award, the possession of the land was obtained from the landowners. This is also confirmed by the record of rights for the year*

> *1999, which reflects the acquiring department as the owner of the land. Therefore, it is clear that the land has been absolutely vested with the acquiring department of the Government since 1999.*
>
> *10. In the position of law stated above, since the appellants/petitioners had taken possession of the land in pursuance of the award under Section 11 of the Land Acquisition Act, 1894, the acquisition had become past and closed, denuding the Commissioner of the right to withdraw, rescind, recall or amend any notification regarding the acquisition.……"*

Moreover, a similar view has been taken by this Court in the case of *Wali Rehman v. The Additional Commissioner (Revenue) Gujranwala Division and 7 others* (**2022 CLC 106**), in the following manner: -

> *"6. The issuance of notification under Section 6 of Act ibid is a conclusive declaration that the land is needed for public purpose and the object of the Section 17 of the Act ibid is to allow an authority to proceed with the matter without waiting completion of other formalities. Once possession of the land is taken under Section 17 of the Act ibid, whereafter the title of the land for all intents and purposes vests free from all encumbrances in the name of the government and the ownership of the previous proprietor by operation of law stand ceased/ extinguished whereafter the land owner was stripped off from the legal authority/right to make any transaction of the said acquire land and any person who purchases the acquired land during or after the acquisition proceedings is debarred to challenge the acquisition proceedings and* ***if any sale/alienation of the land so acquired is executed that would be void and non-existent in the eyes of law****……" (emphasis provided)*

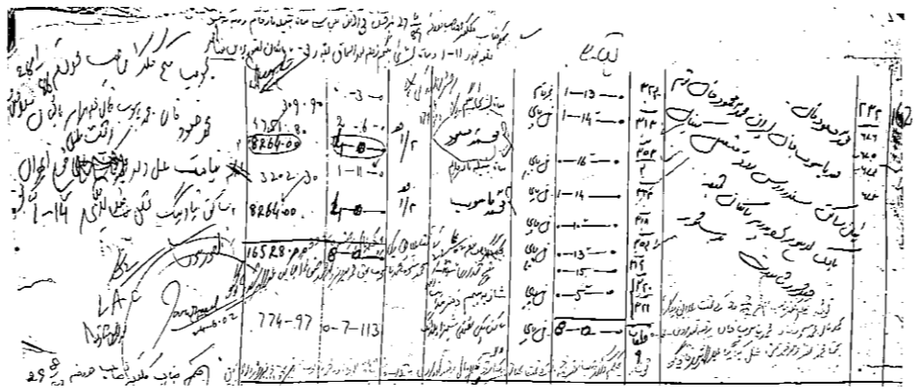
If the contention of the petitioners, under reference, is considered in the light of the afore-referred judgments, there leaves no doubt that the land already vested with LDA, as a result of announcement of Award, was not available for transfer

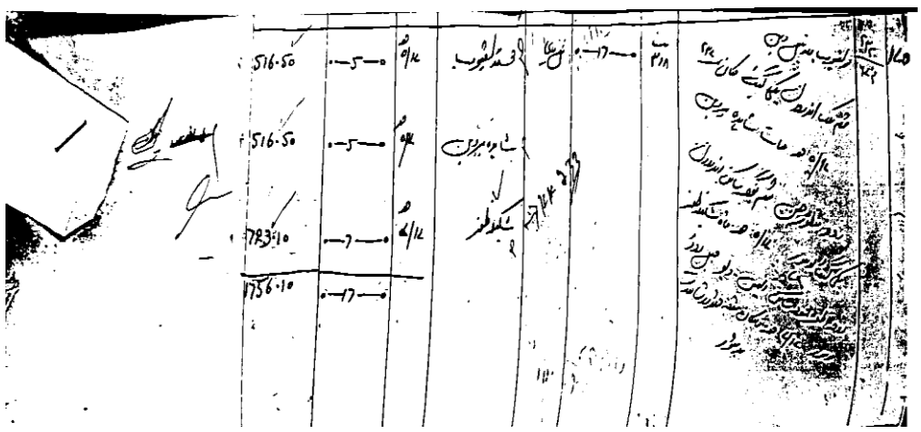
in the name of the petitioners and their mother, through sale deed in the year 2001.

9. The next question which boils down for determination by this Court is as to whether the Act, 1985 had any adverse bearing upon the proceedings, subject matter of this petition. Since the Award, in the matter, was announced on 17.02.1982, in my humble opinion, the Act, 1985 had no bearing upon the dispute raised in this petition. Moreover, according to the settled principles of interpretation of Statutes, the repeal of an enactment, during continuation of proceedings in a matter under the repealed law, has no negative impact for the reasons that the same have to reach their logical conclusion notwithstanding the repeal of the relevant law. Further, to cater for such situation, saving clause is incorporated in a statute repealing an enactment.

10. While assisting the Court, learned counsel for the petitioners put much emphasis on the fact that since Mst. Shakeela Zafar was owner to the extent of 7-Marlas of land only, land measuring 17-Marlas could not be shown to have been acquired from her to prove that entire land falling in *Khasra* No.318 was acquired. To appreciate the contention of learned counsel for the petitioners, I have gone through the Award announced by the Land Acquisition Collector, Lahore

Development Authority, relevant portion thereof is imaged below: -





The above imaged portions from the Award, announced by the Land Acquisition Collector, LDA, render it crystal clear that land measuring 10-Marlas, falling in Khasra No.318, was acquired from Muhammad Masood Khan and Muhammad Yasoob Khan, against entry at Serial No.162. Further, according to entry at Serial No.170 of the Award, land measuring 17-Marlas was also acquired from Khasra No.318. As per the said entry, land measuring 17-Marlas was owned by Muhammad Yaqoob and Shahida Parveen, to the extent of 5-Marlas each whereas 7-Marlas land was acquired from

Shakeela Zafar. In the given circumstances, the plea of the petitioner that 17-Marlas of land owned by Shakeela Zafar was acquired by LDA, stands negated from the record. Even otherwise, when the entire land falling in *Khasra* No.318 was acquired in the year 1982, the petitioners have no *locus standi* to raise objection against the entitlement of a person whose land was acquired especially when the petitioners purchased land in the year 2001.

11. It is borne out from the record that the Deputy Commissioner, Lahore, through Notification, dated 14.06.1981, authorized the Land Acquisition Collector, LDA, to take possession of the land. A perusal of said Notification shows that *Khasra* No.318 is included therein. Further, word "*min*" has been mentioned with the *Khasra* Numbers where partial land of said Khasra was acquired but no such mention having been made with *Khasra* No.318, it stands clear that entire land falling under the said *Khasra* was acquired, thus, the assertion of learned counsel for the petitioners that the land, subject matter of *Khasra* No.318 was not acquired as a whole, seems to be misconceived.

12. While addressing the Court, learned counsel for the petitioners put much emphasis on the fact that if the entire land falling in *Khasra* No.318 was acquired, then as to how the sale

deed in favour of the petitioners and their predecessor-in-interest was attested. On the face of it, the said assertion seems to be very plausible but when the same is considered while putting it in juxtaposition to the fact that formal mutation bearing No.11803 regarding partial transfer of land, subject matter of the Award, under discussion, was attested in favour of LDA, on 03.10.2013, the sale deed executed in favour of the petitioners alongwith their predecessor-in-interest was inconsequential. It is of common knowledge that upon announcement of Award the land, subject matter thereof, stands transferred in the name of the acquiring agency, thus, the same cannot be sold by its previous owner.

13. The inconsistent attitude of the petitioners is evident from the fact that on the one hand they have taken the plea that the land underneath their house was never acquired but on the other they filed application before respondent No.1 with the following prayer: -

> *"It is therefore, most respectfully prayed that the application may kindly be accepted and the above said Khasra number 318 situated at hadbast Mauza Kot Kamboh may kindly be de-notified to the notification number LAC-2458 dated 10.02.1981 or adjustment in the LDA record and a direction may kindly be issued to the Patwari Halqa to the issue Fard Malkiyat to the petitioners regarding the suit property."*

A cursory glance over the afore-quoted prayer shows that on the one hand the petitioners prayed for denotification of the land,

falling in of Khasra No.318 and on the other they requested for adjustment of their land in LDA record. The said fact affirms that they were very much aware about acquisition of the entire land falling in Khasra No.318, thus, they cannot claim that the land falling in Khasra No.318 was partially acquired by LDA. Though, learned counsel for the petitioners has addressed the Court at certain length but has been able to convince this Court as to how the land, subject matter of the Award, announced in the year 1982, could be transferred in the name of the petitioners.

14. It is matter of record that the sale deed in favour of the petitioner was registered, on 01.10.2001, but the same was incorporated in the revenue record through Mutation bearing No.13220, attested on 19.09.2017. Though, learned counsel for the petitioners addressed the Court at reasonable length but has not been able to give even half a reason for such belated attestation of mutation in their favour. Further, the mutation regarding transfer of inheritance of Mst. Hanifan Bibi was sanctioned by the revenue officer on the same date. Both these facts do not coincide with each other. In ordinary circumstances, after registration of formal sale deed, attestation of mutation is considered as just formality but due to peculiar facts and circumstances of the case in hand, the belated

attestation of mutation in favour of the petitioners speaks loud about the fact that the revenue field staff, being abreast of the fact that land subject matter of the sale deed executed in favour of the petitioners was acquired by LDA pursuant to the Award announced in the year 1982, did not take any step to promptly incorporate the sale deed in the revenue record.

15. It is trite law that after announcement of Award, the property vests in the name of the acquiring agency and nobody can question the validity of said Award except to file a Reference under the relevant provisions of law *inter-alia* agitating grievance regarding measurement of the acquired land and quantum of compensation etc. Reliance in this regard is placed on the case reported as *Begum Shahida Ahmad and 3 others v. Registrar, Co-operative Societies, Lahore and others* (**2024 YLR 2766**). If the objections, raised by the petitioners against the Award, announced in favour of LDA, are considered in the light of the above judgment, it becomes crystal clear that the same do not hold any water for the reason that neither any land owned by the petitioners was acquired under the said Award nor they had any *locus standi* to challenge the same as they are basing their claim on a sale deed, registered in the year 2001.

16. Learned counsel for the petitioners repeatedly urged that since the possession is with the petitioners, they are entitled to retain the same notwithstanding announcement of the Award. In this regard, I am of the view that firstly, when the possession was taken over by LDA, after completion of acquisition, the same could not be transferred to the petitioners in any manner whatsoever and secondly said plea could be raised by the original owners whose names were present in the Award but the petitioners, by no stretch of imagination fall within the category of an aggrieved person with specific reference to the said fact.

17. As discussed earlier, the entire land falling in Khasra No.318 was acquired by LDA. The persons whose names were mentioned against said Khasra in the Award could agitate any matter relating to measurement, compensation etc. but when they did not raise such objection before the relevant forum the petitioners, who stepped into shoes of one Waseem Akhtar, cannot claim better position as compared to said person. Admittedly, Waseem Akhtar never challenged the acquisition proceedings prior to sale of property in favour of the petitioners, thus, the petitioners have no *locus standi* to maintain their claim against acquisition proceedings.

18. Now coming to the case-law, referred by learned counsel for the petitioner, I am of the view that the same is inapplicable to the facts and circumstances of the present case inasmuch as in the referred case a learned Division Bench of this Court held that prior to completion of possession proceedings, the Commissioner can de-notify any land subject matter of an Award in exercise of powers under section 48 of the Act, 1894, whereas firstly, the proceedings in the instant matter having been conducted under the Act, 1973 the said provision is inapplicable and secondly since the possession proceedings were completed in the year 1981, the petitioners had no locus standi to challenge the same through a miscellaneous application, on the basis of their sale deed registered in the year 2001.

19. For what has been noted above, I see no force in this petition which is hereby **dismissed** with no order as to costs.

Judge

Announced in Open Court today i.e. 04.06.2025.
Approved for Reporting.

Judge

*G.R.**